

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: _____

Date Purchased: _____

-----X
VICTOR VALENTIN,

Plaintiff,

-against-

SUMMONS

Plaintiff designates
New York County
as the place of trial

THE CITY OF NEW YORK, DET. ALEXANDER SOSA
(SHIELD #2549) and JOHN DOE'S #1 and #2, the first and
last names fictitious and unknown,

Defendants.

The basis of venue is:
Location of occurrence

Plaintiff resides at:
59 W. 109th Street
New York, NY 10025
County of *New York*

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 8, 2016

Yours, etc.,



CLIFFORD D. GABEL
Marder, Eskesen & Nass, Esqs.
Attorney for Plaintiff
VICTOR VALENTIN
450 Seventh Avenue, 37th Floor
New York, New York 10123
(212) 967-1122

TO: The City of New York, 100 Church St., New York, NY
Det. Alexander Sosa, Midtown North Pct., 306 W. 54TH St., New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

VICTOR VALENTIN,

Plaintiff,

-against-

Index No.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, DET. ALEXANDER SOSA
(SHIELD #2549) and JOHN DOE'S #1 and #2, the first and
last names fictitious and unknown,

Defendants.

-----X

Plaintiff VICTOR VALENTIN, complaining of the defendants, by his attorneys,
MARDER, ESKESEN & NASS, ESQS., hereby sets forth and alleges, upon information and
belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned and on February 11, 2015, plaintiff
VICTOR VALENTIN was and still is a resident of New York County, City and State of New
York.

2. At all times hereinafter mentioned and on February 11, 2015, defendant
THE CITY OF NEW YORK (the "CITY") was and still is a domestic municipal corporation,
duly organized and existing under and by virtue of the Laws of the State of New York.

3. At all times hereinafter mentioned and on February 11, 2015, defendant
ALEXANDER SOSA (SHIELD #2549) was and still is a resident of the City and State of New
York.

4. At all times hereinafter mentioned and on February 11, 2015, defendants JOHN DOE's #1 and #2 were and still are residents of the City and State of New York.

5. Plaintiff VICTOR VALENTIN has complied with all the conditions precedent to the commencement of the within action against defendant the CITY; plaintiff's Notice of Claim was served on April 23, 2015, within ninety (90) days of the date that the within causes of action were caused to accrue; plaintiff's Supplemental Notice of Claim was serve on October 22, 2015; thirty (30) days have elapsed and the claim remains unpaid and unadjusted; plaintiff testified at an oral examination pursuant to General Municipal Law Section 50-h on September 25, 2015, and this action is being commenced within one (1) year and ninety (90) days of the date that the within causes of action were caused to accrue.

6. At all times hereinafter mentioned and on February 11, 2015, and for some time thereafter, defendant SOSA was employed by defendant the CITY.

7. At all times hereinafter mentioned and on February 11, 2015, and for some time thereafter, defendants JOHN DOE'S #1 and #2 were employed by defendant the CITY.

8. At all times hereinafter mentioned and on February 11, 2015, and for some time thereafter, defendant SOSA was a New York City Police Officer, was assigned Shield Number 2549, and was on duty and working in the scope and course of his employment as a New York City Police Officer.

9. At all times hereinafter mentioned and on February 11, 2015, and for some time thereafter, defendants JOHN DOE'S #1 and #2 were New York City Police Officers, on duty and working in the scope and course of their employment as a New York City Police Officers

10. At all times hereinafter mentioned and on February 11, 2015, and for some time thereafter, plaintiff VICTOR VALENTIN was assaulted, battered, and otherwise the victim of an excessive use of force by the defendants herein, their agents, servants and/or employees.

11. At all times hereinafter mentioned and on February 11, 2015, and for some time thereafter, plaintiff VICTOR VALENTIN was assaulted, battered and otherwise the victim of an excessive use of force without justification, cause or excuse.

12. The aforementioned assault, battery and excessive use of force on plaintiff VICTOR VALENTIN took place at 59 West 109th Street, New York, New York, and other locations wherein the plaintiff VICTOR VALENTIN was held against his will by the defendants, their agents, servants and/or employees.

13. The aforementioned assault, battery and excessive use of force of the plaintiff VICTOR VALENTIN was carried out by police officers and/or other servants, agents and/or employees of defendant the CITY, including but not limited to defendants SOSA and JOHN DOE'S #1 and #2.

14. By reason of the foregoing, plaintiff VICTOR VALENTIN was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

15. This action falls within one or more of the exceptions set forth in CPLR Section 1602, involving intentional actions, the defendant and/or defendants having acted in reckless disregard for the safety of others and/or a non-delegable duty.

16. By reason of the foregoing, plaintiff VICTOR VALENTIN has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

17. Plaintiff repeats, reiterates, and realleges, each and every allegation set forth in paragraphs 1 through 16 with the same force and effect as though fully set forth at length herein.

18. All of the aforementioned acts committed by police officers, servants, and/or other employees of the defendant the CITY were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the CITY.

19. Defendant the CITY was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of certain police officers, agents, servants and/or other employees, including, but not limited to defendants SOSA and JOHN DOE'S #1 and #2, who were employed by defendant the CITY.

20. By reason of the foregoing, plaintiff VICTOR VALENTIN was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

21. This action falls within one or more of the exceptions set forth in CPLR Section 1602, involving intentional actions, the defendant and/or defendants having acted in reckless disregard for the safety of others and/or a non-delegable duty.

22. By reason of the foregoing, plaintiff VICTOR VALENTIN has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

23. Plaintiff repeats, reiterates, and realleges, each and every allegation set forth in paragraphs 1 through 22 with the same force and effect as though fully set forth at length herein.

24. On February 11, 2015, plaintiff VICTOR VALENTIN was arrested by a police officer and/or police officers employed by the New York City Police Department.

25. On February 11, 2015, plaintiff VICTOR VALENTIN was arrested by a police officer or police officers from the PSA 6th Precinct.

26. On February 11, 2015, plaintiff VICTOR VALENTIN was arrested by defendant SOSA.

27. On February 11, 2015, plaintiff VICTOR VALENTIN was arrested by defendants JOHN DOE'S #1 and #2.

28. On February 11, 2015, plaintiff VICTOR VALENTIN was arrested at 59 W. 109th Street, New York, New York.

29. On February 11, 2015, plaintiff VICTOR VALENTIN was arrested without probable cause.

30. On February 11, 2015, plaintiff VICTOR VALENTIN was arrested without an arrest warrant.

31. On February 11, 2015, plaintiff VICTOR VALENTIN was arrested, taken into police custody and detained against his will.

32. The aforementioned arrest and imprisonment of plaintiff VICTOR VALENTIN was carried out by police officers and/or other servants, agents and/or employees of defendant the CITY.

33. The aforementioned arrest and imprisonment of plaintiff VICTOR VALENTIN amounts to a false arrest and false imprisonment since defendants arrested plaintiff without a warrant, without probable cause and without legal authority.

34. By reason of the foregoing, plaintiff VICTOR VALENTIN was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was deprived of his freedom; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

35. This action falls within one or more of the exceptions set forth in CPLR Section 1602, involving intentional actions, the defendants having acted in reckless disregard for the safety of others and/or a non-delegable duty.

36. By reason of the foregoing, plaintiff VICTOR VALENTIN has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates, and realleges, each and every allegation set forth in paragraphs 1 through 36 with the same force and effect as though fully set forth at length herein.

38. On February 11, 2015, in the course of the arrest of plaintiff VICTOR VALENTIN, defendants acted willfully, maliciously, recklessly, wantonly, and with intent to injure plaintiff VICTOR VALENTIN.

39. On August 17, 2015, all charges against plaintiff VICTOR VALENTIN were dismissed.

40. By reason of the foregoing, plaintiff VICTOR VALENTIN was wrongfully deprived of his freedom and was compelled to employ an attorney and/or incur additional expenses all to his damage in an amount to be determined upon the trial of this action.

41. By reason of the foregoing, plaintiff VICTOR VALENTIN has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates, and realleges, each and every allegation set forth in paragraphs 1 through 41 with the same force and effect as though fully set forth at length herein.

43. By reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's assault and battery, victimization of excessive force, false arrest, malicious prosecution, and the negligence of the defendants and defendant the CITY in the negligent hiring, negligent retention, and negligent training of certain of its employees and/or police officers, plaintiff VICTOR VALENTIN was caused to have his civil rights violated, and more particularly those rights guaranteed by the 4th Amendment, 8th Amendment and 14th Amendment of the United States Constitution insofar as being deprived of his right to due process and to be free from cruel and unusual punishment.

44. By reason of the foregoing, plaintiff VICTOR VALENTIN was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

45. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, the defendant and/or defendants having acted in reckless disregard for the safety of others and/or a non-delegable duty.

46. By reason of the foregoing, plaintiff VICTOR VALENTIN has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

47. Plaintiff repeats, reiterates, and realleges, each and every allegation set forth in paragraphs 1 through 46 with the same force and effect as though fully set forth at length herein.

48. At all relevant times, and on February 11, 2015, and thereafter, while plaintiff was in police custody, plaintiff required medical attention due to an injury.

49. At all relevant times, defendants owed plaintiff a duty to possess a reasonable degree of learning and skill, the duty to use reasonable care and diligence in exercising skill and learning, the duty to apply approved methods in general use, the duty to use their best judgment and the duty to provide good, timely and competent medical care.

50. At all relevant times, and on February 11, 2015, and thereafter, defendants caused physical injuries and damage to plaintiff VICTOR VALENTIN.

51. At all times hereinafter mentioned, and on February 11, 2015, defendants deprived plaintiff VICTOR VALENTIN of civil rights guaranteed by the 4th, 8th and 14th Amendments to the United States Constitution and in particular to the right to receive timely and proper medical care while in police custody, and the City engaged in a pattern of behavior designed to so prevent persons in the position of plaintiff and plaintiff in particular from obtaining timely and proper medical care, and defendants showed medical indifference to plaintiff's medical needs.

52. By reason of the foregoing, plaintiff VICTOR VALENTIN was injured; rendered sick, sore, lame and disabled; caused to undergo medical treatment and advice; unable

to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

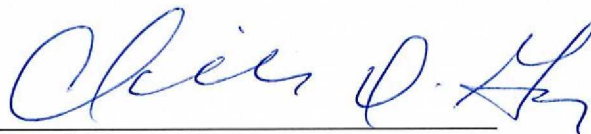
53. This action falls within one or more of the exceptions set forth in CPLR Section 1602, involving a non-delegable duty, intentional acts and actions in reckless disregard for the safety of others.

54. By reason of the foregoing, plaintiff VICTOR VALENTIN has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of York.

WHEREFORE, plaintiff VICTOR VALENTIN demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth and Sixth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, costs and disbursement.

Dated: New York, New York
February 8, 2016

Yours, etc.,



CLIFFORD D. GABEL
Marder, Eskesen & Nass, Esqs.
Attorney for Plaintiff
VICTOR VALENTIN
450 Seventh Avenue
37th Floor
New York, New York 10123
(212) 967-1122

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) .SS:

VICTOR VALENTIN, being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing COMPLAINT and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



VICTOR VALENTIN

Sworn to before me this
8th day of February, 2016.



Notary Public

CLIFFORD D. GABEL
NOTARY PUBLIC-STATE OF NEW YORK
No. 02GA5014234
Qualified in Nassau County
My Commission Expires July 15, 2019